



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

DOT-E 10912

APR 15 1993

400 Seventh Street, S.W.  
Washington, D.C. 20590

EXPIRATION DATE: April 30, 1993

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Westvaco Corporation, New York, New York
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time shipment of a DOT Specification 105J500W tank car, containing the residue of a Division 2.3 material, meeting all DOT requirements except that the tank and safety valve are overdue for retest and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2)
5. BASIS. This exemption is based on Westvaco Corporation's applications of October 13, 1992, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials description/proper shipping name | Hazard Class (Written Class) class number | Identification number | Packing Group |
|------------------------------------------------------|-------------------------------------------|-----------------------|---------------|
| Chlorine                                             | 2.3                                       | UN 1017               |               |

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
  - a. Packagings prescribed is a DOT specification 105J500W tank car, UTLX 28349, meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tank and safety relief valve are overdue for tests.
  - b. MARKING - Tank car UTLX 28349 must be marked DOT-E 10912 in four inch letters on a contrasting background above the DOT Specification number.

APR 15 1993

Continuation of DOT-E 10912

Page 2

8. SPECIAL PROVISIONS.

a. Transportation is authorized from Westvaco Corporation, Charleston, South Carolina, to Olin Corporation, Charleston, Tennessee, a distance of approximately 515 miles, utilizing the most direct route via the Norfolk Southern Corporation.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration  
Office of Safety, RRS-12  
400 Seventh Street, S.W.  
Washington, D.C. 20590  
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:



Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

APR 15 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA